

defects in the agreement indicate the stronger party engaged in a systematic effort to impose arbitration on the weaker party not simply as an alternative to litigation, but to secure a forum that works to the stronger party's advantage. [Citation omitted.]" (*Id.* at 516-517.) "Severance may be properly denied when the agreement contains more than one unconscionable provision, and 'there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement.'" [Citation.]" [Citations omitted.]" (*Cook, supra*, 102 Cal.App.5th at 329.)

The Court finds severance of the unconscionable terms is not appropriate in this case in part because unconscionability permeates the Arbitration Agreement. The two unconscionable provisions go to the heart of the agreement to arbitrate by creating a sweeping and virtually unlimited in time or scope agreement by the Plaintiff to arbitrate any claim he may have against anyone affiliated with Welcome Market as an "agent," employee, shareholder, officer, or director and by compelling Plaintiff to waive bringing or even participating in a PAGA action as a member of a class of aggrieved, represented employees. These provisions are central to the Arbitration Agreement, such that the unconscionability of those provisions is also central to the agreement.

It is also not clear to the Court how severance could be effectuated to extirpate the unconscionable aspects of the agreement without reforming the language of the agreement by adding terms such as ", in light of the broad definition of Company which is a term used throughout the remainder of the agreement, the absence of language that limits the duration of the agreement's application and scope of claims against Welcome Market that would be compelled to arbitration even if the definition of "Company" were limited to Welcome Market itself, and the manner in which the Class Action Waiver paragraph is drafted. The Court finds the interests of justice do not support severance but warrant denial of enforcement of the Arbitration Agreement for unconscionability. (*Ramirez, supra*, 16 Cal.5th at 516-517.)

8. 9:00 AM CASE NUMBER: C25-03586
CASE NAME: ED PENNING VS. FAIRWAY INDEPENDENT MORTGAGE CORPORATION
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: FAIRWAY INDEPENDENT MORTGAGE CORPORATION
TENTATIVE RULING:

On the Court's own motion, the hearing on this matter is continued until July 8, 2026. No appearance is required on July 1, 2026.

9. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
FILED RE: KRISTINA F. MOORE
FILED BY: CHEVRON U.S.A. INC
TENTATIVE RULING:

Summary

This Tentative Ruling applies to Lines 9, 10, 11 and 12. Defendants Chevron U.S.A Inc's, Syngenta AG, et. al, and Plaintiffs Collen Clasen and William DeHaven, et. al. have filed Motions and Verified Applications of four attorneys ("Applicants") for *Pro Hac Vice* Admission. These motions are unopposed and are **granted**.

The following attorneys are admitted *pro hac vice* to the State Bar of California for the duration of this case:

Kristina Moore, Esq.
Tayjes Shah, Esq.
Jeffrey Travers, Esq.
Orla O'Callaghan, Esq.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review of each of the four verified applications, the Court finds that the Applicants have declared facts under penalty of perjury to support the application under CRC Rule 9.40. Specifically, each of the Applicants are in good standing, admitted to the Bar and the highest Court of their state, and are not members of the California State Bar. Each applicant has verified that they are not resident of the State of California, nor does they have regular employment or substantial business in California. Each Applicant has represented to the Court that they not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

1. All four Motions for Admission of Counsel Pro Hac Vice are **granted**.
2. The Court will execute the proposed order granting Verified Application of the foregoing attorneys to appear as Counsel *Pro Hac Vice* lodged with the Court on the following dates, with direction to the Clerk of the Court to attach a copy of this ruling to the orders:
 - Proposed Order Granting Application for Admission of Tayjes Shah, Esq., lodged January 6, 2026
 - Proposed Order Granting Application for Admission of Jeffrey Travers, Esq., lodged January 6, 2026.
 - Proposed Order Granting Application for Admission of Orla O'Callaghan, Esq., Lodged January 9, 2026.
3. Counsel for Chevron did not lodge a proposed order granting application for Admission of Kristina Moore. Chevron's counsel is directed to prepare a proposed order conforming to this ruling, attaching a copy of this ruling.
4. No appearance is required at the July 1, 2026 hearing.

10. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

FILED RE: TAYJES SHAH, ESQ.

FILED BY: CLASEN, COLLEEN R.

TENTATIVE RULING: